

**BEFORE THE
NETWORKING AND INFORMATION TECHNOLOGY RESEARCH AND
DEVELOPMENT NATIONAL COORDINATION OFFICE,
NATIONAL SCIENCE FOUNDATION**

Request for Information on the Development of an Artificial Intelligence (AI) Action Plan

**COMMENTS OF THE AMERICAN SOCIETY
OF COMPOSERS, AUTHORS AND PUBLISHERS**

The American Society of Composers, Authors and Publishers (ASCAP) welcomes the opportunity to respond to the Networking and Information Technology Research and Development (NITRD) National Coordination Office (NCO) Request for Information on the Development of an Artificial Intelligence (AI) Action Plan. 90 Fed. Reg 9088 (February 6, 2025). We submit these comments on behalf of ASCAP's over 1,000,000 songwriter, composer and music publisher members, for whom ASCAP licenses the public performance rights of their millions of copyrighted songs by tens of thousands of music users around the country, including digital music services, radio and television broadcasters, concerts venues, bars and retail stores.

While AI can be a powerful tool for innovation and has the potential to enhance human creative efforts, the unchecked use of this technology threatens to undermine the very purpose of the U.S. copyright laws by supplanting, rather than supporting, human creative work. Many of ASCAP's members rely on the public performance royalties paid to them as their main, if not sole, source of income. In the event that AI platforms usurp this revenue stream, untold numbers of U.S. creators stand to lose their ability to earn a living and the foundation of the nation's thriving creative economy will be undermined.

Indeed, given that creation of U.S. copyrighted content adds annually billions of dollars to the U.S. economy, a policy that fails to recognize the importance and strength of U.S. copyright law will place our creative industry at an international disadvantage. The U.S. can win the AI race without abandoning the strong copyright laws that have fueled creativity and entrepreneurship across the country for decades.

We strongly believe that U.S. AI policy should meet the following principles, which have been consistent with ASCAP's collective licensing practices since its founding over a century ago:

- **Humans First:** A vague appeal to “innovation” cannot justify infringing the rights of existing human creators. The copyright laws and other legal frameworks must ensure that human creativity is supported, rather than supplanted, by developing technologies, including generative AI.
- **Consent:** Developers of AI tools, creators of underlying AI models, and compilers of training datasets must be responsible for ensuring that all relevant rights have been obtained for the use of any copyrighted content included in models or training datasets.
- **Transparency:** Developers of AI tools, creators of underlying AI models, and compilers of training datasets must be responsible for collecting, maintaining and notifying rightsholders of accurate and comprehensive information regarding all copyrighted content the AI tool or dataset contains, including, where available, all standard industry metadata.
- **Compensation:** To the extent the AI industry exploits and benefits financially from the creativity and labor of human artists, writers, and other creators, it must compensate these creators fairly for the use of their works.

- **Credit:** Developers of AI tools must be responsible for labeling AI-generated musical works as such, and must provide credit to the creators whose works are utilized in such generation.
- **Global Consistency:** Because copyrights to musical works are globally administered through an interconnected structure of international agreements and licensing networks, global consistency in AI regulation is essential to enabling proper exchange of compensation and remuneration across borders. Inconsistencies in international or regional laws and regulations may not only cause operational disruptions but create back-doors to evade legal compliance.

Arguments have been posited that the fair use principles within U.S. copyright law allow for full-scale infringement of privately-owned copyrighted property. These arguments have little basis under a sound analysis of recent caselaw. We point the government to ASCAP's detailed comments filed with the U.S. Copyright Office as part of the Office's Study of Artificial Intelligence and Copyright, which is available at:

<https://www.ascap.com/~media/files/pdf/articles/2023/ascap-comments-to-us-copyright-office-on-generative-ai.pdf>.

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Respectfully submitted,

March 15, 2025

AMERICAN SOCIETY OF COMPOSERS, AUTHORS AND PUBLISHERS